
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: April 5, 2021
SUBJECT: Consideration of Bid #E-20-21 for a Contract between the City of Cheyenne and Alco Fence Co. Inc., for the Fencing and Gates, for the City of Cheyenne Compost Facility Project

Three (3) bidders responded to this bid, and the bid tabulation is attached. The Three (3) bids were received from:

1. SWi LLC. Cheyenne, Wyoming.
 - a. Bid Rejected, Not In Compliance
2. Borderline Fencing, Inc. Cheyenne, Wyoming.
 - a. Bid Rejected, Not In Compliance
3. Alco Fence Co. Inc. Cheyenne, Wyoming.
 - a. Bid submitted In Compliance

Two (2) of the Three (3) Bids were not in compliance with the terms of the Bidding Documents, and the non-compliant bids have been rejected. One (1) Submitted Bid was fully in compliance.

The basis for Bid Rejection, was based on the Bidders not returning their “Marked” Line Item Specifications / Scope of Work. The Two (2) Bids that have been rejected did not mark Y or N, on ANY of the Line Items. The requirement to return the “Marked” Line Item Specifications / Scope of Work, for review by the City, is clearly identified in two (2) separate locations within the Bidding Documents. Due to the fact that the Bidders did not indicate Y or N, we have no mechanism to certify that their submitted Bids, and their end product, will meet our Specification / Scope of Work.

The bids were reviewed by Vicki Nemecek (Public Works), Craig LaVoy (Public Works), and Matt Theriault (Public Works). Their recommendation is to accept the lowest **responsive** bid from Alco Fence Co. Inc. The bid award is for \$47,740.00.

Funding: 023-14-1423-43-43102 (Solid Waste Fund / Equipment (over \$5,000))
\$47,740.00

BID TABULATION
CITY OF CHEYENNE - PURCHASING
BID NUMBER: E-20-21
 Bid Opening: March 30, 2021
Fencing and Gates, for the City of Cheyenne Compost Facility

Bidder Name & Location	Addendum (ONE)	Signed	Bid Guarantee (5%)	Total Cost
<i>SWi LLC. Cheyenne, Wyoming. (Rejected Due to Non-Compliant Submission)</i>	YES	YES	N/A (>35K)	\$ 34,995.00
<i>Borderline Fencing, Inc. Cheyenne, Wyoming. (Rejected Due to Non-Compliant Submission)</i>	YES	YES	YES	\$ 44,454.00
Alco Fence Co. Inc. Cheyenne, Wyoming.	YES	YES	YES	\$ 47,740.00

INQUIRIES REGARDING THIS BID SHOULD BE DIRECTED TO:
 CITY OF CHEYENNE, PURCHASING MANAGER, PHONE: (307) 773-1045, EMAIL: TBARTTELBORT@CHEYENNECITY.ORG
 MUNICIPAL BUILDING, 2101 O'NEIL AVE, ROOM 309, CHEYENNE, WYOMING 82001

TJB

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. E-20-21

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and ALCO FENCE CO. INC., hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Compost Facility Fencing & Gates**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: Addendum One (1), dated March 9, 2021.

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **July 2, 2021**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Bidding Documents, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, the sum of **Forty-Seven Thousand, Seven Hundred Forty Dollars (\$47,740.00)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

- b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §15-1-113(h). Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|-----------------------------|--------------------------------------|
| 1. This Agreement; | 6. General Provisions and Insurance; |
| 2. Addenda; | 7. Specifications and Special |
| 3. Invitation for Bids; | Provisions; and |
| 4. Instructions to Bidders; | 8. Drawings. |
| 5. Signed Bid Proposal; | |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kristina F. Jones, City Clerk

Patrick Collins, Mayor

Notary or Corporation Secretary:

SUBSCRIBED AND SWORN TO BEFORE ME

this ____ day of _____, ____

by _____

My Commission expires: _____

Alco Fence Co. Inc.

Contractor

By

Title

2421 E. 7th Street
Cheyenne, Wyoming 82001